

Supreme Court of the State of New York
County of the NEW YORK

CHANTAL CHANECO and
PETER TONDREAU

Plaintiff(s),

- against -

THE CITY OF NEW YORK, Police Officer LUIS DIAZ, **Summons**
and Police Officer JAVIER LOPEZ,
Defendant(s).

INDEX NO.

DATE FILED:

Plaintiff designates
New York County
as place of trial

The basis of the venue is
the place of the occurrence

and residence of plaintiff
PETER TONDREAU

To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 24, 2018

Attorney for Plaintiffs
ERIK B. LUTWIN, ESQ.
Post Office Address
401 BROADWAY, SUITE 200
New York, NY 10013
(212) 431-5757

Defendant(s) address(es):

THE CITY OF NEW YORK
Police Officer LUIS DIAZ c/o The City of New York
Police Officer JAVIER LOPEZ c/o The City of New York
Office of the Corporation Counsel
100 Church Street, 4th Fl.
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
CHANTAL CHANECO and
PETER TONDREAU,

Plaintiffs,

VERIFIED COMPLAINT

Index No.:

against-

THE CITY OF NEW YORK, Police Officer LUIS DIAZ,
and Police Officer JAVIER LOPEZ,

Defendants
-----X

Plaintiffs by their attorneys for their Verified Complaint respectfully allege that:

INTRODUCTION

1. At all times hereinafter mentioned the plaintiff, CHANTAL CHANECO, was a resident of the County of Bergen, State of New Jersey.
2. At all times hereinafter mentioned the plaintiff, PETER TONDREAU, was a resident of the County of New York, State of New York.
3. At all times hereinafter mentioned the defendant, City of New York (hereinafter the "CITY") was and still is municipal corporation duly created, organized and existing under and by virtue of the laws of the State of New York.
4. At all times hereinafter mentioned the defendant THE NEW YORK CITY POLICE DEPARTMENT (hereinafter, the "NYPD") was, and still is a department of the CITY duly created, organized and existing under and by virtue of the laws of the CITY.
5. At all times hereinafter mentioned, LUIS DIAZ was employed by the NYPD, a department of the CITY, as a police officer.

6. At all times hereinafter mentioned, JAVIER LOPEZ was employed by the NYPD, a department of the CITY, as a police officer.
7. At all times hereinafter mentioned, the defendants CITY, NYPD, their agents, servants, officers, employees and assigns including but not limited to Officers LUIS DIAZ and JAVIER LOPEZ acted under color of law.
8. A Notice of Claim of plaintiff, CHANTAL CHANECO, and her intention to sue thereon, and of the times when and places where her injuries were sustained, was duly served and filed with the defendant, CITY, in a timely manner within ninety (90) days of the occurrence.
9. A Notice of Claim of plaintiff PETER TONDREAU, and his intention to sue thereon, and of the times when and places where his injuries were sustained was duly served and filed with the defendant CITY in a timely manner within ninety (90) days of the occurrence.
10. More than thirty (30) days have elapsed since the service of such Notice of Claim on behalf of plaintiff CHANTAL CHANECO, and the defendants have failed or refused to adjust such claims.
11. More than thirty (30) days have elapsed since the service of such Notice of Claim on behalf of plaintiff PETER TONDREAU, and the defendants have failed or refused to adjust such claims.
12. A G.M.L. 50 – h hearing in this matter of plaintiff CHANTAL CHANECO was conducted on October 23, 2017.
13. A G.M.L. 50 – h hearing in this matter of plaintiff PETER TONDREAU was conducted on January 29, 2018.

14. More than thirty (30) days have elapsed since the G.M.L. 50-h hearing of CHANECO CHANTAL was conducted and the defendant, CITY, has failed or refused to adjust such claim.
15. More than thirty (30) days have elapsed since the G.M.L. 50-h hearing of PETER TONDREAU was conducted and the defendant, CITY, has failed or refused to adjust such claim.
16. At all times hereinafter mentioned the defendant CITY maintained and operated control the NYPD for purposes of enforcing laws and carrying out municipal police procedures on the behalf of the CITY and its residents.
17. That any and all charges made against plaintiffs herein have been dismissed.

AS AND FOR A FIRST CAUSE OF ACTION FOR WRONGFUL ARREST

18. Plaintiffs repeat, reiterates and re-allege the allegations found in the paragraphs "1" through "17" inclusive with the same full force and effect as if same were set forth at length herein.
19. That, on April 26, 2017, at about 2:00 a.m., LUIS DIAZ, an officer of the NYPD arrested plaintiff CHANTAL CHANECO in the vicinity of Hester Street and Essex Street, City of New York, County of New York, State of New York.
20. That, on April 26, 2017, at about 2:00 a.m., without cause, LUIS DIAZ and JAVIER LOPEZ, officers of the NYPD arrested plaintiff PETER TONDREAU in the vicinity of Hester Street and Essex Street, City of New York, County of New York, State of New York.

21. Officer LUIS DIAZ, Shield 19018 of the 7th Precinct made a statement of allegations against plaintiffs herein on April 26, 2017 at about 4:05 a.m.
22. According to that statement, the defendants attempted to prevent the officers from arresting them, and that this formed the basis for a charge of resisting arrest.
23. Nowhere in the statement, however, is any indication of the reason why the officers sought to arrest plaintiffs in the first place.
24. That there was no proper cause to arrest plaintiffs when the officers first encountered plaintiffs that morning.
25. That the officers acted without cause in seeking to arrest plaintiffs.
26. That the arrest of CHANTAL CHANECO was without proper cause.
27. That the arrest of PETER TONDREAU was without proper cause.
28. That as a result of the false arrest of plaintiffs, plaintiffs have been damaged in a sum which exceeds the monetary jurisdiction of all the courts which might otherwise have jurisdiction this action.

AS AND FOR A SECOND CAUSE OF ACTION

FOR WRONGFUL IMPRISONMENT

29. Plaintiffs repeat, reiterate and re-allege the allegations found in the paragraphs "1" through "28" inclusive with the same full force and effect as if same were set forth at length herein.
30. That as a result of the arrest, CHANTAL CHANECO was falsely imprisoned.
31. That as a result of the arrest, PETER TONDREAU was falsely imprisoned.

32. That as a result of the false imprisonment of plaintiffs, plaintiffs have been damaged in a sum which exceeds the monetary jurisdiction of all the courts which might otherwise have jurisdiction this action.

AS AND FOR A THIRD CAUSE OF ACTION

FOR EXCESSIVE USE OF FORCE

33. Plaintiffs repeat, reiterate and re-allege the allegations found in the paragraphs "1" through "32" inclusive with the same full force and effect as if same were set forth at length herein.
34. That on April 26, 2017, officers of the NYPD including but not limited to police officer LUIS DIAZ used physical force upon plaintiff CHANTAL CHANECO in the vicinity of Hester Street and Essex Street, New York, NY.
35. That the force used was excessive under the circumstances.
36. As a result of the physical injury plaintiff CHANTAL CHANECO suffered extreme pain and suffering.
37. As of the foregoing, plaintiff CHANTAL CHANECO has been damaged in a sum which exceeds the monetary jurisdiction of all the courts which might otherwise have jurisdiction this action.

AS AND FOR A FOURTH CAUSE OF ACTION FOR ASSAULT

38. Plaintiffs repeat, reiterate and re-allege the allegations found in the paragraphs "1" through "37" inclusive with the same full force and effect as if same were set forth at length herein.
39. That on April 26, 2017 at the time and place aforesaid, officers of the NYPD including police officer LUIS DIAZ assaulted plaintiff CHANTAL CHANECO after she was placed in handcuffs by picking her up and throwing her forcefully to the ground.
40. That the force used by the police caused plaintiffs physical injury.
41. As a result of the physical injury plaintiff suffered extreme pain and suffering.
42. As of the foregoing, plaintiff has been damaged in a sum which exceeds the monetary jurisdiction of all the courts which might otherwise have jurisdiction this action.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL
INFLICTION OF EMOTIONAL DISTRESS**

43. Plaintiff repeats, reiterates and re-alleges the allegations found in the paragraphs "1" through "42" inclusive with the same full force and effect as if same were set forth at length herein.
44. By reason of the aforesaid premises, defendant officer LUIS DIAZ, the defendant CITY, its agents, servants, employees, officers and assigns did intentionally and maliciously cause severe mental distress to the plaintiff.

45. That the conduct of the defendant LUIS DIAZ, the CITY, its agents, servants, officers, employees and assigns was so outrageous and shocking that it exceeded all reasonable bounds of decency, and cannot be tolerated in a civilized society.
46. By reason of the foregoing premises, the plaintiff CHANTAL CHANECO has been damaged in a sum exceeds the monetary jurisdiction of all the courts which might otherwise have jurisdiction this action.

AS AND FOR A SIXTH CAUSE OF ACTION PURSUANT TO 42
U.S.C. 1983 FOR VIOLATION OF PLAINTIFFS' EIGHTH
AMENDMENT RIGHTS

47. Plaintiffs repeat, reiterate and re-allege the allegations found in the paragraphs "1" through "46" inclusive with the same full force and effect as if same were set forth at length herein.
48. That officers of the NYPD including LUIS DIAZ in using excessive force violated plaintiff CHANTAL CHANECO's right to be free from cruel and unusual punishment under the Eighth Amendment to the U.S. Constitution.
49. That pursuant to 42 U.S.C. 1983, officer LUIS DIAZ is liable for damages caused by such violation.
50. That the NYPD, a department of the CITY actively encouraged or passively permitted a policy of stop and frisk irrespective of any probable cause in the vicinity where the arrest took place which deprived plaintiffs of their rights.

51. That defendant CITY failed to properly supervise, train, manage, retain and discipline such officers resulted in a deprivation of plaintiffs' rights.
52. By reason of the foregoing premises, the plaintiffs have been damaged in a sum exceeds the monetary jurisdiction of all the courts which might otherwise have jurisdiction this action.

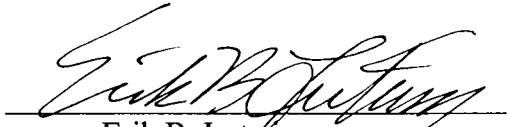
AS AND FOR A CLAIM FOR PUNITIVE DAMAGES

AGAINST OFFICER LUIS DIAZ

53. Plaintiffs repeat, reiterate and re-allege the allegations found in the paragraphs "1" through "52" inclusive with the same full force and effect as if same were set forth at length herein.
54. That the conduct of Police Officer LUIS DIAZ in throwing plaintiff CHANTAL CHANECO to the ground when she was already in handcuffs demonstrated a reckless and callous indifference to CHANTAL CHANECO's federally protected rights.
55. That the conduct of Police Officer LUIS DIAZ in throwing plaintiff CHANTAL CHANECO to the ground when she was already in handcuffs was wanton and reckless, showing an indifference to her rights.
56. That such conduct rises to the level for which punitive damages should be awarded to plaintiff CHANTAL CHANECO

WHEREFORE, plaintiffs demand judgment against the defendants on their first, second, third, fourth, fifth, and sixth causes of action in an amount sufficient to compensate them for the damages they sustained in each of their causes of action, for an award of punitive damages against officer police officer LUIS DIAZ in favor of plaintiff CHANECO CHANTAL, together with costs and disbursements of this action and such other and further relief as this Court deems just and proper.

Dated: New York, New York
July 24, 2018



Erik B. Lutwin
Attorney for the Plaintiff
401 Broadway, Suite 200
New York, NY 10013
(212) 431-5757

Defendants' addresses:

THE CITY OF NEW YORK
Office of the Corporation Counsel
100 Church Street, 4th Fl.
New York, New York 10007

Officer LUIS DIAZ
c/o THE CITY OF NEW YORK
Office of the Corporation Counsel
100 Church Street, 4th Fl.
New York, New York 10007

Officer JAVIER LOPEZ
c/o THE CITY OF NEW YORK
Office of the Corporation Counsel
100 Church Street, 4th Fl.
New York, New York 10007

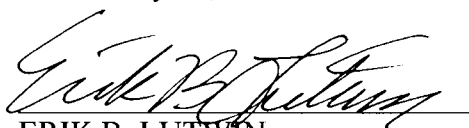
ATTORNEY'S AFFIRMATION

STATE OF NEW YORK)
) SS:.
COUNTY OF NEW YORK)

ERIK B. LUTWIN, an attorney licensed to practice in the courts of New York State, state that I am the attorney of record for plaintiff, in the within action; I have read the foregoing **SUMMONS AND COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by plaintiff CHANECO CHANTAL is that plaintiff CHANECO CHANTAL does not reside in the county wherein I maintain my office for the practice of law.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: conversations with the plaintiffs and documents contained in my file.

Dated: New York, New York
July 24, 2018



ERIK B. LUTWIN
401 Broadway, Suite 200
New York, NY 10013
(212) 431-5757

VERIFICATION

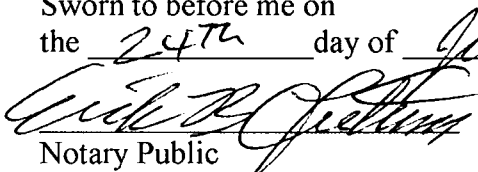
STATE OF NEW YORK)
) SS:
COUNTY OF NEW YORK)

I, the undersigned, being duly sworn, depose and say: I am the plaintiff in the within action; I have read the foregoing **Summons and Verified Complaint** and know the contents thereof; and the same is true to my own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true.



PETER TONDREAU

Sworn to before me on
the 24th day of July 2018.


Notary Public

ERIK B. LUTWIN
Notary Public, State of New York
No. 02LU6172559
Qualified in Queens County
Commission Expires August 13, 2019

**SUPREME COURT OF THE STATE OF NEW YORK Index#
COUNTY OF NEW YORK**

CHANTAL CHANECO and
PETER TONDREAU

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against-

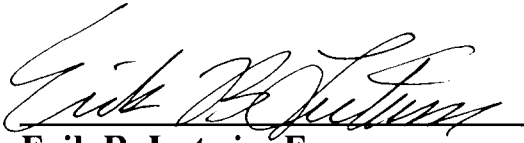
THE CITY OF NEW YORK, Police Officer LUIS DIAZ,
And Police Officer JAVIER LOPEZ,
Defendants

**SUMMONS AND
VERIFIED COMPLAINT**

**ERIK B. LUTWIN, ESQ.
Attorney for the Plaintiff
401 Broadway, Suite 200
New York, New York 10013
(212) 431-5757**

Certification pursuant to 22 NYCRR 130-1.1

**Dated: New York, New York
July 24, 2018**


Erik B. Lutwin, Esq.

TO:

THE CITY OF NEW YORK
Police Officer LUIS DIAZ c/o The City of New York
Police Officer JAVIER LOPEZ c/o The City of New York
Office of the Corporation Counsel
100 Church Street, 4th Fl.
New York, New York 10007